

LAWYER PREP BRIEF

Confidential — For Discussion with Your Legal Advocate

1. Document Overview

Document Type:	Employment Offer Letter
Parties:	Not explicitly identified in document header
Document ID:	test-doc-pdf

2. Clauses at Issue

Notice Period (c-003) — Risk: 3/5 | Baseline: Stricter Than Usual

"After confirmation, either party may terminate this agreement by giving ninety (90) days written notice or three months' salary in lieu thereof. The Employee shall not be entitled to any notice pay-out if terminated for cause."

Training Bond (c-004) — Risk: 4/5 | Baseline: Stricter Than Usual | Enforceability: Limited Enforceability

"The Employee agrees to serve the Company for a minimum period of two (2) years from the date of completion of any training programme. In the event the Employee resigns or is terminated for cause before the completion of the bond period, the Employee shall be liable to pay the Company an amount of INR 3,00,000 (Rupees Three Lakhs Only) as liquidated damages towards training costs incurred."

Non-Compete (c-005) — Risk: 5/5 | Baseline: Unusual | Enforceability: Likely Unenforceable

"For a period of twelve (12) months following the termination of employment for any reason, the Employee shall not, directly or indirectly, engage in, be employed by, or provide services to any business that competes with the Company within India."

Intellectual Property Assignment (c-007) — Risk: 3/5 | Baseline: Stricter Than Usual

"All intellectual property, inventions, designs, and works created by the Employee during the course of employment shall be the sole and exclusive property of the Company. The Employee hereby assigns all rights, title, and interest in such works to the Company."

3. Specific Questions to Ask Your Lawyer

- Is the Notice Period clause enforceable as written, and what are the practical risks of challenging it?
- Whether the INR 3,00,000 amount bears reasonable relation to actual training costs
- Whether a proportional reduction based on time served would apply
- Is the Training Bond clause enforceable as written, and what are the practical risks of challenging it?
- Whether this specific non-compete clause would be treated as void ab initio or partially severable
- Whether the employer could argue this falls under a garden leave arrangement rather than a pure non-compete
- Is the Non-Compete clause enforceable as written, and what are the practical risks of challenging it?
- Is the Intellectual Property Assignment clause enforceable as written, and what are the practical risks of challenging it?

4. Documents to Bring

- The original offer letter / agreement (this document)
- Any previous correspondence with the employer regarding terms
- Your resume and the job description for the role
- Details of any training programs mentioned in the agreement
- Your previous employment agreement (for comparison)
- Any written communications about the terms you wish to discuss

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